

**THE PEOPLE OF THE STATE OF CALIFORNIA v HILAMEN, et  
al**

**25CV48067**

**PLAINTIFF’S MOTION FOR ORDER OF POSSESSION**

The State of California (“State”) seeks to acquire by eminent domain a portion of real property owned by Rodney and Consuelo Hilaman as part of a project to install a roundabout to improve intersection control and safety at State Routes 26 and 49. (Declaration of Powell Yang (“Yang Decl.”), ¶ 4.)

Parcel 17537-1 is located along State Route 49 up to and along the boundary of the intersection of State Routes 26 and 49. (Yang Decl. ¶3.) The subject larger parcel of .60 acres is adjacent to State Route 49, in the southwest quadrant of the intersection of State Routes 26 and 49. (Yang Decl. ¶ 5.) The larger parcel is irregularly shaped, generally level throughout and at grade with State Route 49 and is vacant. (*Ibid.*) Caltrans seeks a partial acquisition of 0.26 acre in fee for its Project as necessary for completion of its Project. (*Id.* ¶ 6.)

State now moves for an order for prejudgment possession of Parcel 17537-1. The motion is unopposed.

**I. Legal Standard**

Pursuant to Code Civil Procedure section 1255.410, subd.(a):

“At the time of filing the complaint or at any time after filing the complaint and prior to entry of judgment, the plaintiff may move the court for an order for possession under this article, demonstrating that the plaintiff is entitled to take the property by eminent domain and has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.”

Where, as is the case here, the motion is unopposed, the Court shall make an order for possession where it finds: 1) the plaintiff is entitled to take the property by eminent

domain and 2) the plaintiff has deposited a sufficient amount under the law. (Code Civ. Proc. § 1255.410(d)(1).)

The determination of the Plaintiff's right to take the property by eminent domain is preliminary only and does not prejudice the defendant's right to demur to the complaint or contest to the taking. Likewise, the denial of an order of possession does not require the dismissal of the proceeding and does not prejudice the plaintiff's rights to fully litigate the matter. (Legislative Committee Comments to Code Civ. Proc., § 1255.410.)

### **III. Legal Analysis**

#### **A. State has the right to take the Property by Eminent Domain**

A public entity may not commence an eminent domain proceeding until a resolution of necessity has been adopted. (Code Civ. Proc., § 1245.220.) A resolution of necessity adopted by the governing body of the public entity, pursuant to the eminent domain law, conclusively establishes that the described property is necessary for the construction of a necessary public project. (Code Civ. Proc., § 1245.250.)

On January 31, 2025, the State adopted Resolution of Necessity No. C-22533, declaring that Parcel 17537-1 is necessary for the Project. (Yang Decl., ¶ 10; Ex. 2.) This Resolution conclusively establishes the State's right to take the Subject Property by eminent domain for the Project.

#### **B. State has made the requisite deposit**

Pursuant to Code of Civil Procedure section 1255.010(a), the Plaintiff may deposit with the State Treasury the "probable amount of compensation, based on an appraisal, that will be awarded in the proceeding. The appraisal upon which the deposit is based shall be one that satisfies the requirements of subdivision (b)."

Subdivision (b) requires that, before making the deposit, the plaintiff must have a qualified expert : 1) appraise the property and 2) prepare a written statement or basis for that appraisal. The appraisal must contain sufficient detail and specific information regarding how the valuation was made and account for the Property's best uses.

On July 25, 2025, the State deposited \$81,615.00 with the Condemnation Deposits Fund of the State Treasury, for Parcel 17537-1. (Yang Decl., ¶ 11.) The deposit of \$81,615.00 represents the probable compensation to be awarded, based on an expert's appraisal. (Declaration of Jesus Corral ("Corral Decl."), ¶ 2; Ex. 1.) Plaintiff has provided an expert appraisal and declaration from Curtis Bechtold, who is a staff appraiser for the Department of Transportation. (Corral Decl., Ex. 1.) After review of the parcel at issue, Mr. Bechtold determined that the probable amount of just compensation that will be awarded in this proceeding in connection with the taking of Parcel No. 17537-1 is \$81,615.00. (*Ibid.*)

The State filed and served a notice of this deposit in compliance with Code of Civil Procedure section 1255.020.

Plaintiff has provided the declaration of Michelle Patton who is a California State Certified General Real Estate Appraiser and a Member of the Appraisal Institute. (Declaration of Michelle Patton ("Patton Decl.") ¶ 1.) Ms. Patton avers that she has investigated the Property for the purposes of "ascertaining its use, character,

adaptability, quality and location" and is familiar with other property in the area and the values of those properties. (*Id.* ¶ 2.) After review, Ms. Patton concluded that the Fair Market Value of the Property was \$14,000.00. (*Id.*, Ex. A "Appraisal Report".) The Appraisal Report is thorough and detailed and contains the information required by Code Civil Procedure section 1255.010(b).

#### **IV. Conclusion**

Based on all the foregoing reasons, State's motion or prejudgment possession is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.

**TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC, et al**

**24CF14779**

**PLAINTIFF'S MOTION TO DETERMINE APPEARANCE AND  
FOR ENTRY OF DEFAULT/PLAINTIFF'S MOTION TO COMPEL**

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff.

Now before the Court are two motions filed by Plaintiff: 1) Motion to Determine Appearance and For Entry of Default and 2) Motion to Compel.

The Motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]**